

PETTINCHIO v. TISCORNIA

23CV47094

PLAINTIFF'S MOTION TO CEASE AND DESIST; INJUNCTION; EMERGENCY RELIEF

Plaintiff filed a two page complaint and a two page motion requesting a cease-and-desist order preventing his landlord from entering his rented premises to repair its electrical service.

(The pleadings are confusing to say the least. Plaintiff Pettinichio filed an initial complaint; Jim W. Hildreth for Gretel Tiscornia prepared the Answer, but it reversed the parties, i.e. listing Tiscornia as Plaintiff and Pettinichio as Defendant.)

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754- 6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m., the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court.

Failure to include this language in the notice is a basis for the Court to deny the motion.

In addition to this procedural shortcoming, the Court notes no legal or factual basis is provided for the claimed relief in either the complaint or the present motion.

Based on the foregoing, the motion is DENIED on both procedural and substantive Grounds, without prejudice to refile an appropriate motion.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

**SURVIVOR'S TRUST, JODY GRAHAM, TRUSTEE v.
STATE OF CALIFORNIA, ET AL.**

20CV44999

**DEFENDANT CALIFORNIA STATE TEACHER RETIREMENT
SYSTEM'S ['CalSTRS'] DEMURRER AND MOTION TO STRIKE
RE PLAINTIFF'S FIRST AMENDED COMPLAINT**

Plaintiff's First Amended Complaint was filed on Sept. 6, 2023; defendant CalSTRS has demurred and filed a Motion to Strike.

When any ground for objection to a complaint appears on its face, or from any judicially noticed matter, the objection may be made by demurrer to the complaint. (Code of Civil Procedure §430.30(a).) Objections to a complaint may be made on grounds including the court lacking subject matter jurisdiction of the cause of action alleged, and the complaint not stating facts sufficient to constitute a cause of action. (CCP. § 430.10.) "Where written documents are the foundation of an action and are attached to the complaint and incorporated therein by reference, they become a part of the complaint and may be considered on demurrer." (*Qualcomm, Inc. v. Certain Underwriters at Lloyd's, London* (2008) 161 Cal.App.4th 184, 191.)

A demurrer admits the truth of all material factual allegations in the complaint; thus, to defeat a demurrer, plaintiffs need only plead facts showing they may be entitled to some relief. (*Keyes v. Santa Clara Valley Water Dist.* (1982) 128 Cal. App. 3rd 882.) For a defendant to prevail on a demurrer they must establish the complaint 'has included allegations that clearly disclose some defense or bar to recovery [Citation omitted] Thus, a demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense. [Citation omitted.]" (*Casterson v. Superior Court* (2002) 101 Cal.App.4th 177, 182-183.) A cause of action is subject to demurrer for failure to state a claim if the complaint discloses an affirmative defense on its face and the plaintiff has not "pleaded around" that defense." (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 824-825.)

Key points raised in the demurrer are the timeliness and content of the government claim submission and the question of the exhaustion of administrative remedies.

The applicable claims statute is found in Government Code § 945.4, which provides a six-month claim period for a suit for money or damages. Plaintiff's FAC includes a claim form submitted in this matter (Exhibit B), identifying date of incident as May 6, 2019. Therefore, the claim against CalSTRS was required to be filed within six months by November 6, 2019 but the claim was not filed until April 20, 2020.